

SOFTWARE AS A SERVICE AGREEMENT

Between CloudVerve Inc. ("Provider") and Northwind Retail Ltd. ("Customer") · Effective Jan 15, 2026

1. Term

This Agreement shall commence on the Effective Date and continue for an initial term of twelve (12) months. Either party may elect not to renew by providing written notice at least thirty (30) days prior to the end of the then-current term.

2. Fees and Payment

Customer shall pay the fees set forth in the applicable Order Form. Invoices are payable within thirty (30) days of the invoice date. Late payments accrue interest at 1.0% per month.

3. Termination

Either party may terminate this Agreement for material breach if such breach remains uncured thirty (30) days after written notice. Upon termination, Customer shall pay all fees accrued through the effective date of termination.

4. Limitation of Liability

Except for breaches of confidentiality, each party's total aggregate liability shall not exceed the total fees paid by Customer in the twelve (12) months preceding the claim. Neither party shall be liable for indirect or consequential damages.

5. Confidentiality

Each party shall protect the other's Confidential Information using the same degree of care it uses for its own, and no less than reasonable care. Obligations survive for three (3) years after termination.

6. Data Protection

Provider shall implement industry-standard technical and organizational measures to protect Customer Data and shall not process such data except to provide the Services.

7. Governing Law

This Agreement shall be governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles.